

1.

CASE #	CASE NAME	HEARING NAME
CVRI2504281	LIMONITE C&C VS EL RODEO CAFE CORP	DEMURRER ON CROSS-COMPLAINT OF ORLANDO CASTELLON

Tentative Ruling:

The Court continues the hearing to October 22, 2026, at 8:30 a.m. Before filing a demurrer, the moving party **shall** meet and confer, **at least 5 days before a responsive pleading is** due, in person, by telephone, or video conference, with the party who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§430.41, subd. (a), 435.5, subd. (a)(1)-(2).) The moving party must file a declaration stating how the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (Code Civ. Proc., § 430.41, subd. (a)(3).) The parties failed to comply as only emails were exchanged. (Montez Decl., ¶¶6-10.) This is not Code-compliant.

The Court **ORDERS** Defendants to meet and confer in person, or via phone or videoconference with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer and motion to strike. As part of the meet and confer process, Defendants shall identify the specific causes of action that it believes are subject to demurrer and motion to strike and identify with legal support the basis of the deficiencies. Plaintiff shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the Complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendants shall, 10 days before the continued hearing date, set do one of the following: (1) vacate the hearing on the demurrer, and file an Answer; (2) file with the Court a declaration stating the parties have agreed that Plaintiff will file an amended complaint before the next hearing date; or (3) file with the court a declaration stating the means by which the parties met and conferred and identify the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a).)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504281	LIMONITE C&C VS EL RODEO CAFÉ CORP	MOTION TO STRIKE COMPLAINT ON CROSS-COMPLAINT OF ORLANDO CASTELLON

Tentative Ruling:

See above.